

Part 3

Miscellaneous and General

31. Projections on or over streets

- (1) No building or other structure shall be erected in, over, under or upon any portion of any street whether or not on land held under lease from the Government unless—
- (a) the building or other structure complies with the relevant criteria stipulated in Part II of the Building (Planning) Regulations (Cap. 123 sub. leg. F); (*Amended 20 of 2008 s. 22*)
 - (aa) the building or other structure is a signboard and its location and dimensions do not constitute—
 - (i) a danger to the structure of any building;
 - (ii) a hazard to traffic;
 - (iii) a fire hazard;
 - (iv) an obstruction of any traffic signs, traffic light signals, road markings, or any other equipment or facilities for the monitoring or control of traffic condition;
 - (v) an obstruction or reduction of the width or height of any means of escape or means of access for fire fighting and rescue;
 - (vi) an obstruction of the lighting or ventilation of any building in such a manner as to reduce the quality of light and air available to the building below that required under the regulations; or
 - (vii) a danger to the public; or (*Added 20 of 2008 s. 22*)

- (b) an exemption has been granted by the Building Authority pursuant to section 42. (*Replaced 42 of 1992 s. 4*)
- (2) Where in the opinion of the Building Authority the public interest so requires he may—
 - (a) by order in writing served on the owner of the building any part of which projects, or attached to which is any projection, over any street or unleased Government land require the alteration or removal of such projection within 3 months from the service of the order or within such lesser period as the Building Authority may deem necessary in the circumstances; or
 - (b) carry out or cause to be carried out such alteration or removal and, except in the case of a projection over a street held on lease from the Government, recover the cost thereof from such owner. (*Amended 29 of 1998 s. 105*)
- (2A) Where the owner referred to in subsection (2)(a) cannot be found or fails to comply with the requirements of an order served under subsection (2)(a), the Building Authority may carry out or cause to be carried out the works specified in the order or such other works as he considers to be necessary and the cost thereof shall be recoverable from the owner. (*Added 42 of 1992 s. 4*)
- (3) Where—
 - (a) no exemption is granted by the Building Authority under section 42 for the re-erection over or upon any portion of a street held on lease from the Government of a building which had been so built under the provisions of this or any earlier enactment; or
 - (b) the Building Authority exercises his power under subsection (2) to require the alteration or removal of,

or alters or removes any projection built under the provisions of this or any earlier enactment over any street or unleased Government land,

compensation shall be paid by the Government to the owner of such building. (*Amended 23 of 1969 s. 7; 29 of 1998 s. 105*)

- (4) Any dispute as to whether any compensation is payable or as to the amount of such compensation shall, in default of agreement, be determined by arbitration in accordance with the provisions of the Arbitration Ordinance (Cap. 609). (*Amended 17 of 2010 s. 112*)

32. Naming of streets and numbering of buildings

- (1) The Building Authority may affix to or paint or cause to be affixed to or painted on any building which fronts or abuts on any street the name of such street.
- (2) The Building Authority or Commissioner of Rating and Valuation may by an order in writing served on the owner of any building which fronts or abuts on any street require such building to be marked with the number allocated by, and in such manner as may be prescribed by the Commissioner of Rating and Valuation for the purpose of distinguishing such building. (*Amended 44 of 1959 s. 14; 91 of 1990 s. 5*)
- (3) No person shall obscure or deface any street name or building number.

32A. Carrying out of other works and provision of services

In any case where under this Ordinance the Building Authority is authorized to carry out or cause to be carried out works (in this section referred to as *the principal works*), he may also carry out or cause to be carried out such other works, and provide or cause to be provided such services, as he considers necessary for

the carrying out of the principal works and may recover the costs thereof from the person liable for the costs of the principal works under this Ordinance.

(Added 57 of 1987 s. 5)

32B. Cost of abortive visit

In any case where under this Ordinance the Building Authority is authorized to carry out or cause to be carried out works and access to the works is denied, refused or not available he may recover the cost of any abortive visit from the person liable for the cost of the works under this Ordinance had the works been carried out.

(Added 42 of 1992 s. 5)

33. Recovery of costs and surcharge by Building Authority

(Amended 16 of 2011 s. 21)

- (1) In any case where under this Ordinance the Building Authority is authorized to recover the cost of any inspection, investigation or works carried out by him or caused to be carried out by him or to recover the costs of services provided by him or caused to be provided by him or to recover the cost of any abortive visit made by him, the Building Authority may impose a surcharge of not exceeding 20% on the cost due and may certify under his hand the cost and surcharge due and names of the persons liable therefor, and may by such certificate apportion such cost and surcharge among such persons. *(Amended 57 of 1987 s. 6; 42 of 1992 s. 6; 24 of 2012 ss. 5 & 13)*
- (2) Such cost may include—
 - (a) the cost of materials supplied by the Building Authority for the purpose of carrying out such inspection, investigation or works; and
 - (b) supervision charges.

- (3) A copy of the Building Authority's certificate shall be served upon each person affected thereby.
- (4) Interest at the rate of 10 per cent per annum from the expiry of 1 month from the date of such service shall be recoverable as part of such cost or surcharge.
- (5) The payment of such cost or surcharge by any person shall be without prejudice to his right to recover the same from any person liable to pay the expenses of the repair of, or of other building works in connexion with, any building or land. *(Amended 72 of 1980 s. 11)*
- (6) Without prejudice to any other remedy of the Building Authority for the recovery of such cost or surcharge, the same may be recovered as a debt due to the Government. *(Replaced 13 of 1966 Schedule. Amended 62 of 2000 s. 3)*
- (7) The writ of summons in connexion with such action shall be taken to have been duly served if it appears, to the satisfaction of the Court, that the writ was left at the defendant's residence or place of business, or in case the same is unknown, that it was left at the building or on the land in respect of which the claim is made. *(Amended 72 of 1980 s. 11)*
- (8) A certificate purporting to be under the hand of the Building Authority, made under the provisions of subsection (1), and setting forth that the cost or surcharge claimed is due or payable to the Building Authority and that the person sued is liable for the payment thereof, and specifying the nature and particulars of the claim shall be prima facie evidence of the facts certified therein and of the signature of the Building Authority thereto.
- (9) At any time before such costs or surcharge and any interest accrued thereon has been wholly recovered, a memorial of the certificate referred to in subsection (1) may be registered in the Land Registry against the title of any premises or land in

respect of which such cost or surcharge arose, and upon such registration the cost or surcharge and any interest accrued or thereafter accruing shall— (*Amended 8 of 1993 s. 2; 16 of 2011 s. 21*)

- (a) be recoverable by action in Court in accordance with the provisions of this section from any person who from such Land Registry register then or thereafter appears to be the owner of such premises or land: (*Amended 8 of 1993 s. 2*)

Provided that—

- (i) the amount recovered by virtue of this subsection shall not exceed the value of that person's interest in the premises or land charged; and
 - (ii) where the amount so recovered is equal to the value of the premises or land the charge created under paragraph (b) shall become void; and
- (b) constitute a first charge on the said premises or land which shall give the Building Authority the same powers and remedies in respect thereof as if he were a mortgagee under a mortgage by deed in common form having power of sale and lease and of appointing a receiver: (*Amended 37 of 1961 s. 5*)

Provided that the charge shall be void and no liability shall accrue under this subsection against a bona fide purchaser or mortgagee of the premises or land for valuable consideration who, subsequent to the completion of the works specified in the certificate and before the registration of the memorial thereof, has acquired and registered an interest in the premises or land to be charged. (*Replaced 44 of 1959 s. 15. Amended 72 of 1980 s. 11*)

- (10) Upon the recovery of any sum under this section the Building Authority shall lodge in the Land Registry an appropriate

memorial of satisfaction against any memorial lodged there by him under subsection (9). (*Amended 8 of 1993 s. 2*)

(*Amended 13 of 1966 Schedule; 16 of 2011 s. 21*)

34. Disposal of materials resulting from works carried out by Building Authority

Where the Building Authority has carried out or caused to be carried out works under this Ordinance he may dispose of any materials resulting from such work.

(*Added 23 of 1969 s. 8. Amended 72 of 1980 s. 12; 57 of 1987 s. 7*)

35. Service of notices and orders

(1) Any notice, order or certificate required to be served under this Ordinance may be served by serving a copy— (*Amended 16 of 2011 s. 22*)

(a) personally; or

(b) by registered post addressed to the last known place of business or residence of the person to be served; or

(c) by leaving the same with an adult occupier of the premises or land to which the notice or order relates or by posting the same upon a conspicuous part of such premises or land: (*Amended 72 of 1980 s. 13*)

Provided that in addition to or in substitution for any such method of service the publication in the Gazette of any such notice or order together with the available particulars of the person to whom it is addressed shall be deemed to be good service.

(2) A certificate purporting to be signed by a person who states in that certificate that the person has effected service under subsection (1) is evidence of the facts stated in the certificate relating to that service. (*Added 16 of 2011 s. 22*)

36. *(Repealed 20 of 2008 s. 23)*

36A. *(Repealed 20 of 2008 s. 23)*

36B. *(Repealed 20 of 2008 s. 23)*

36C. Powers to make records of specified documents and copy records

The Building Authority or a person authorized by the Building Authority may—

- (a) make a record in the form of—
 - (i) a paper document;
 - (ii) a microfilm; or
 - (iii) an electronic record,
of any specified document;
- (b) convert a record in the form of a paper document or a microfilm made under paragraph (a) into an electronic record; or
- (c) make a copy of a record made under paragraph (a) or (b).

(Added 20 of 2008 s. 24)

36D. Disposal of documents

Where it is not necessary or desirable to maintain a specified document in the form in which it was submitted to or approved by the Building Authority, the document may be destroyed or disposed of after a specified document record of it is made.

(Added 20 of 2008 s. 24)

36E. Specified document records to be treated as specified documents

A specified document record is to be treated for all purposes as the specified document from which the specified document record is made.

(Added 20 of 2008 s. 24)

36F. Making available specified document records to public through electronic networks

The Building Authority or a person authorized by the Building Authority may make a specified document record available for inspection by any person through the Internet, an intranet or a similar electronic network.

(Added 20 of 2008 s. 24)

36G. Issue, certification and inspection of copies, etc. of specified documents or specified document records

- (1) The Building Authority or a person authorized by the Building Authority, may, on the payment of the prescribed fee, issue to a person a copy, a print or an extract of or from a specified document or a specified document record, to facilitate the ascertaining by that person of any matter mentioned in subsection (4).
- (2) The Building Authority or a person authorized by the Building Authority, may, on the payment of the prescribed fee, issue to a person a copy, a print or an extract of or from a specified document or a specified document record, that is certified under section 36H, to facilitate the ascertaining by that person of any matter mentioned in subsection (4).
- (3) The Building Authority or a person authorized by the Building Authority, may, on the payment of the prescribed fee, make available for inspection—
 - (a) at any reasonable time, a specified document or a specified document record, at a place specified by the

Building Authority or by a person authorized by the Building Authority; or

- (b) a specified document record by the means mentioned in section 36F,

to facilitate the ascertaining by any person of any matter mentioned in subsection (4).

- (4) The matters referred to in subsections (1), (2) and (3) are—
 - (a) matters relating to the construction of any building or the carrying out of any building works or street works;
 - (b) whether a building, building works or street works have been completed or carried out in compliance with the provisions of this Ordinance or any other enactment; and
 - (c) any other matter that the Building Authority considers appropriate to be made available in the interest of the public.

(Added 20 of 2008 s. 24)

36H. Power to certify copies, etc. of specified documents or specified document records

The Building Authority or a public officer authorized by the Building Authority may certify a copy, a print or an extract of or from a specified document or a specified document record as a true copy, print or extract of or from the specified document or the specified document record.

(Added 20 of 2008 s. 24)

36I. Admissibility in evidence of copies, etc.

- (1) A copy, a print or an extract of or from a specified document or a specified document record that purports to be a true copy, print or extract of or from the specified document or

the specified document record, is admissible in evidence in criminal or civil proceedings before any court on its production without further proof if it is certified under section 36H.

- (2) The court before which the certified copy, print or extract is produced shall, unless there is evidence to the contrary, presume that—
 - (a) the certification or signature is made by the Building Authority or a public officer authorized by the Building Authority; and
 - (b) it is a true copy, print or extract.
- (3) Nothing in this section—
 - (a) affects any claim of the Government to withhold the original of any specified document or a specified document record on the ground that its production would be contrary to the public interest; or
 - (b) affects the admissibility of any evidence which would be admissible apart from the provisions of this section.

(Added 20 of 2008 s. 24)

37. Limitation of public liability

- (1) No liability shall rest upon Government or upon any public officer by reason of the fact that any building works are carried out in accordance with the provisions of this Ordinance or that such building works or the plans thereof or materials therefor are subject to inspection or approval by a public officer, nor shall anything in this Ordinance make it obligatory for the Building Authority to inspect any building, building works or materials or the site of any proposed building to ascertain that the provisions of this Ordinance are complied with or that plans, certificates, forms, reports,

notices and other documents submitted to him are accurate.
(*Amended 16 of 2011 s. 23*)

- (2) No matter or thing done by the Building Authority or by any public officer acting under his direction shall if it were done bona fide for the purpose of executing this Ordinance subject him or such public officer personally to any action, liability, claim or demand whatsoever.
- (3) Nothing in this Ordinance contained shall exempt any person from any proceeding by way of mandamus, injunction, prohibition or other order unless it is expressly so enacted.

(*Amended 31 of 1966 s. 102*)

38. Regulations

- (1) The Secretary may by regulation provide for— (*Amended L.N. 330 of 1999; L.N. 106 of 2002; L.N. 130 of 2007; 20 of 2008 s. 25*)
 - (a) registration and control of—
 - (i) authorized persons;
 - (ii) registered structural engineers;
 - (iia) registered geotechnical engineers; (*Added 15 of 2004 s. 28*)
 - (iib) registered inspectors; (*Added 16 of 2011 s. 24*)
 - (iii) registered general building contractors; (*Amended 54 of 1996 s. 20*)
 - (iv)-(v) (*Repealed 43 of 1987 s. 44*)
 - (vi) registered specialist contractors; (*Replaced 52 of 1974 s. 10. Amended 54 of 1996 s. 20*)
 - (vii) registered minor works contractors; (*Added 20 of 2008 s. 25*)

- (aa) restoration to and removal from the register of any person referred to in paragraph (a); (*Added 20 of 2008 s. 25*)
- (b) the manner of making application for and granting of approval of plans of building works or street works, and the giving of consent to commence or carry out such works, including cases where it is desired— (*Amended 17 of 2018 s. 52*)
 - (i) to add to or alter building works or street works the commencement of which has already been consented to, or
 - (ii) to commence certain parts of building works or street works before other parts;
- (ba) the planning, design and construction of site formation works; (*Added 72 of 1980 s. 14*)
- (bb) the planning, design and carrying out of ground investigation in the scheduled areas; (*Added 41 of 1982 s. 9. Amended 52 of 1990 s. 7*)
- (c) planning and design of buildings including—
 - (i) streets;
 - (ii) projections;
 - (iii) heights, site coverage, plot ratio and open spaces including service lanes; (*Amended 23 of 1969 s. 9*)
 - (iv) lighting and ventilation;
 - (v) sanitation;
 - (vi) staircases and fire-escapes;
 - (vii) domestic buildings;
 - (viii) buildings for special uses including industrial buildings, places of public entertainment and schools;

- (ix) any sea-wall, breakwater, jetty, mole, quay, wharf or pier; (*Amended 6 of 1995 s. 4*)
- (x) exceptional structures;
- (xi) timber yards and hoardings; (*Amended 23 of 1969 s. 9; 43 of 1993 s. 8*)
- (xii) fire fighting equipment; (*Added 37 of 1961 s. 6. Amended 43 of 1993 s. 8; 39 of 2000 s. 5*)
- (xiii) matters relating to the installation of lifts and escalators; (*Added 43 of 1993 s. 8. Amended 39 of 2000 s. 5; 15 of 2004 s. 28*)
- (xiv) matters relating to the provision of access facilities for telecommunications and broadcasting services; and (*Added 39 of 2000 s. 5. Amended 15 of 2004 s. 28*)
- (xv) matters relating to the provision of emergency vehicular access; (*Added 15 of 2004 s. 28*)
- (d) the construction of buildings including—
 - (i) materials;
 - (ii) loads and stresses;
 - (iii) foundations, floors and sites;
 - (iv) walls and piers;
 - (v) roofs, flues and chimneys;
 - (vi) structural steel work, reinforced concrete, and timber;
 - (vii) fire-resisting construction;
 - (viii) retaining walls;
 - (ix) plumbing and drainage;

- (x) wells;
- (xi) matters relating to the installation of lifts and escalators; (*Amended 43 of 1993 s. 8; 15 of 2004 s. 28*)
- (xii) refuse chutes, refuse storage chambers, and floor space and facilities for material recovery and separation of refuse; and (*Replaced 39 of 2000 s. 5. Amended 15 of 2004 s. 28*)
- (xiii) matters relating to the provision of emergency vehicular access; (*Added 15 of 2004 s. 28*)
- (e) the supply of water to buildings for all purposes, including the connexion thereof to buildings and the arrangement, size, construction and type of piping therefor and the power of the Building Authority to require that the supply of water be obtained from a particular source or to prohibit or restrict the supply of water from any particular sources; (*Added 16 of 1966 s. 9*)
- (f) (*Repealed 43 of 1993 s. 8*)
- (g) the construction, inspection, testing and safe working of ventilating systems; (*Added 27 of 1964 s. 5*)
- (h) the testing of drainage works and matters ancillary thereto;
- (i) the demolition of buildings and the safety precautions to be taken in respect thereof; (*Added 37 of 1961 s. 6*)

- (ia) the design, construction, licensing, inspection, testing and maintenance of oil storage installations and matters connected therewith, including the imposition of restrictions and conditions relating to the use of such installations for the storage of petroleum products; prohibiting the use of any oil storage installation, requiring any petroleum products to be removed from any oil storage installation, the seizure, removal and detention of any petroleum products not removed from any oil storage installation as required, the power of entry, inspection and examination; and for the establishment of a Standing Advisory Committee to advise the Building Authority on such matters relating to oil storage installations as may be specified in the regulations; (*Added 16 of 1978 s. 3. Amended 5 of 1983 s. 3*)
- (ib) as regards the conservation of energy—
 - (i) requirements relating to the planning, design and construction of any building or buildings of a class or description specified in the regulations, including the furnishing of information regarding these matters;
 - (ii) as regards buildings complying with or required to comply with regulations under subparagraph (i), exemptions from specified requirements in any other regulation made under this subsection; (*Added 77 of 1994 s. 11*)
- (j) the granting of permits for and control of buildings required for a limited time or constructed of short-lived materials;
- (k) plans, notices and certificates to be delivered to the Building Authority;

- (ka) matters relating to minor works, including—
 - (i) the designation of any building works as minor works for the purposes of the definition of ***minor works*** in section 2(1);
 - (ii) the classification of minor works into different classes, types or items;
 - (iii) the appointment of prescribed building professionals in respect of different classes, types or items of minor works; and
 - (iv) the appointment of prescribed registered contractors to carry out different classes, types or items of minor works; (*Added 20 of 2008 s. 25*)
- (kb) the prescription of any requirements as simplified requirements for the purposes of the definition of ***simplified requirements*** in section 2(1), including—
 - (i) the duties of any prescribed building professionals and prescribed registered contractors, appointed in respect of minor works commenced under the simplified requirements (whether to be performed before or after the commencement of the minor works);
 - (ii) the requirements for the commencement, carrying out, completion and certification of minor works under the simplified requirements; and
 - (iii) the requirements for the submission or delivery of prescribed plans, certificates, notices or other documents to the Building Authority or other persons; (*Added 20 of 2008 s. 25*)
- (kc) matters relating to the enforcement of or other matters concerning the simplified requirements; (*Added 20 of 2008 s. 25*)

- (kd) matters relating to the display or indication of information relating to—
- (i) the registration number of any prescribed registered contractor; and
 - (ii) the class, type and item of the minor works in respect of which any prescribed registered contractor is registered,
- in order to facilitate any member of the public to ascertain whether he is, in relation to any matter connected with any activity under this Ordinance, dealing with a contractor registered under this Ordinance; (*Added 20 of 2008 s. 25*)
- (ke) matters relating to section 39C, including matters relating to—
- (i) the appointment of persons including a registered minor works contractor to inspect any building or building works for the purposes of that section;
 - (ia) the prescription of a date in relation to any prescribed building or building works for the purposes of section 39C(1A)(a); (*Added 24 of 2012 s. 6*)
 - (ib) the prescription of the requirement for periodic compliance with the requirements in section 39C(2), (3) and (4) in respect of any prescribed building or building works for the purposes of section 39C(1A)(c); (*Added 24 of 2012 s. 6*)
 - (ic) the prescription of the details in relation to any prescribed building or building works specified in Schedule 8; (*Added 24 of 2012 s. 6*)

- (ii) the prescription of any building or building works for the purposes of the definition of ***prescribed building or building works*** in section 39C(6)(b); and
- (iii) any plans, certificates, notices or other documents that are required to be submitted or delivered to the Building Authority or other persons; (*Added 20 of 2008 s. 25*)
- (kf) the designation of any building works as designated exempted works for the purposes of section 41(3B); (*Added 20 of 2008 s. 25*)
- (kg) matters relating to a prescribed inspection or prescribed repair in respect of a building including—
 - (i) the scope, standard and requirements of a prescribed inspection or prescribed repair in respect of a building;
 - (ii) the requirements of the appointment of registered inspectors, qualified persons, registered general building contractors and registered minor works contractors for a prescribed inspection or prescribed repair;
 - (iii) the duties of registered inspectors, qualified persons, registered general building contractors and registered minor works contractors in relation to a prescribed inspection or prescribed repair;
 - (iv) the prescription of any exemption for the purposes of section 30D(3)(a); and
 - (v) the prescription of representatives of qualified persons for the purposes of section 30E(4); (*Added 16 of 2011 s. 24*)
- (l)-(m) (*Repealed 68 of 1993 s. 18*)

- (n) the better carrying into effect of the provisions of this Ordinance. *(Replaced 44 of 1959 s. 18)*
- (1AA) Without limiting the generality of subsection (1), the Secretary may by regulation provide for the registration of persons as registered minor works contractors in the provisional register (whether or not as supplemental or transitional arrangements). *(Added 20 of 2008 s. 25)*
- (1A) The Chief Executive in Council may by regulation provide for the imposition of fees in respect of any matter with regard to which provision is made in this Ordinance or in regulations made under this Ordinance. *(Added 68 of 1993 s. 18. Amended 62 of 2000 s. 3)*
- (1B) The Chief Executive in Council may by regulation provide for— *(Amended 62 of 2000 s. 3)*
- (a) the procedure as regards the exercise of the right of appeal conferred by section 44;
 - (b) the practice and procedure of an Appeal Tribunal constituted under section 48; and
 - (c) matters ancillary or incidental to those specified under paragraph (a) or (b). *(Added 77 of 1994 s. 11)*
- (1C) Regulations made under subsection (1)(b) may provide that any requirement in such regulations applies to a building, any part of a building or parts of a building as are specified. *(Added 77 of 1994 s. 11)*
- (2) Regulations under this section may provide for the carrying out by the Building Authority of all building works required to be carried out therein, and for the recovery of the costs thereof from the person required to carry out such building works.

- (3) (a) Regulations under this section may provide that where the Building Authority issues permits thereunder he may—
- (i) endorse conditions on such permits;
 - (ii) cancel such permits for breaches thereof; and
 - (iii) require the permittee to deposit a sum not exceeding \$500 as security for the due compliance with such conditions.
- (b) Upon the breach of any such condition, any deposit required by this subsection shall upon application to a magistrate be declared by him to be forfeited to the Government. (*Amended 62 of 2000 s. 3*)
- (3A) The amount of fees provided for in regulations made under subsection (1A) in respect of the making of application for or granting of approval of plans of building works or street works may be fixed at levels which provide for the recovery of expenditure incurred or likely to be incurred generally by the Government in relation to such application or approval and need not be limited by reference to the administrative or other costs incurred or likely to be incurred in the processing of any individual submission of plans. (*Added 68 of 1993 s. 18*)
- (4) Regulations under this section may provide that a contravention of any specific provision thereof shall be an offence and may prescribe penalties therefor of—
- (a) a fine not exceeding level 6;
 - (b) in the case of a continuing offence, a daily fine not exceeding \$5,000 for each day during which the offence continues; and
 - (c) imprisonment for a period not exceeding 2 years. (*Replaced 39 of 2000 s. 5*)

- (5) Regulations under this section shall be published once in the Gazette at least 3 weeks before coming into operation:

Provided that where the Secretary or the Chief Executive in Council, as the case may be, deems it expedient such publication may be dispensed with. (*Amended L.N. 330 of 1999; 62 of 2000 s. 3; L.N. 106 of 2002; L.N. 130 of 2007; 20 of 2008 s. 25*)

(Amended 44 of 1959 s. 18; 68 of 1993 s. 18)

39. Application of new regulations

- (1) Any regulations made under this Ordinance may provide that where plans of building works or street works are submitted to the Building Authority within such period from the coming into operation of the regulations as may be prescribed therein, he may approve any such plans which comply with the provisions of the law before the coming into operation of such regulations and may give consent to the commencement of the works shown therein; and the provisions of subsection (2) shall apply to such works and to any building which may be erected or any street or access road which may be formed, constructed or laid out in consequence thereof.
- (2) Where at the date of the coming into operation of any regulations made under this Ordinance any building works or street works are being carried out or consent to their commencement has been given the provisions of the law prior to the coming into operation of such regulations shall apply to such works:

Provided that in the exercise of his powers under section 20 the Building Authority may require compliance with such regulations coming into operation since the giving of his consent to the commencement of the works in respect of which he is exercising such powers.

(Added 44 of 1959 s. 19. Amended 43 of 1993 s. 9)

39A. Technical memorandum

- (1) The Secretary may issue a technical memorandum dealing with— *(Amended L.N. 330 of 1999; L.N. 106 of 2002; L.N. 130 of 2007; 20 of 2008 s. 26)*
 - (a) the circumstances in which a supervision plan is not required for building works or street works;
 - (b) the classes of supervision that the Building Authority identifies as appropriate to various types of building works and street works having regard to the complexity of the building works or street works, the manpower required and level of supervision required for each of the classes of supervision;
 - (c) detailed supervision requirements for various types of building works and street works including the management structure required to ensure site safety, the manpower required for each element of the management structure, the qualifications and experience of the personnel involved and the specific tasks to be associated in each element of the management structure;
 - (d) the method statement of various types of building works and street works, the types of precautionary and protective measures required to be undertaken for the safety of the site, the workers and the public, and such other details relating to site safety as the Building Authority may consider necessary;
 - (e) the qualifications and experience required for technically competent persons to be appointed for supervisory work under supervision plans;
 - (f) the circumstances in which an authorized person, registered structural engineer, registered geotechnical

- engineer, registered inspector, registered general building contractor, registered specialist contractor or registered minor works contractor is permitted to notify in retrospect for minor deviations from a supervision plan; (*Amended 15 of 2004 s. 29; 20 of 2008 s. 26; 16 of 2011 s. 25*)
- (g) the method and timing of notification of, and the amendment procedures for, a proposed or actual deviation from a supervision plan, including deviations caused by an emergency;
 - (h) the form and content of a supervision plan;
 - (i) the general responsibilities of the site supervision personnel for the various types of building works and street works;
 - (j) the procedure, timing and sequence for the submission of supervision plans.
- (2) The Secretary must publish a technical memorandum issued under this Ordinance in the Gazette and cause it to be laid on the table of the Legislative Council at the next sitting after publication.
- (3) Where the Secretary has caused a technical memorandum to be laid on the table of the Legislative Council, the Legislative Council may, by resolution passed at a sitting of the Legislative Council held before the expiry of a period of 28 days after the sitting at which it was laid, provide that the technical memorandum be amended in any manner consistent with the power to issue the technical memorandum.
- (4) If the period for passing a resolution would, but for this subsection, expire—
- (a) after the end of a session of the Legislative Council or after a dissolution of the Legislative Council; but

- (b) on or before the day of the second sitting of the Legislative Council in the next following session of the Legislative Council,
- the period is deemed to extend to and expire on the day after that second sitting.
- (5) Before the expiry of the period referred to in subsection (3) or that period as extended by virtue of subsection (4), the Legislative Council may by resolution in relation to a technical memorandum specified therein—
- (a) in the case of the period referred to in subsection (3), extend that period to the first sitting of the Legislative Council held not earlier than the twenty-first day after the day of its expiry;
- (b) in the case where the period referred to in subsection (3) has been extended by virtue of subsection (4), extend that period as so extended to the first sitting of the Legislative Council held not earlier than the twenty-first day after the day of the second sitting in that next following session. (*Replaced 8 of 2002 s. 7*)
- (6) A resolution passed by the Legislative Council under this section must be published in the Gazette not later than 14 days after the resolution is passed or within such further period as the Secretary may allow in any particular case.
- (7) A technical memorandum issued under subsection (1) is not subsidiary legislation.
- (8) In this section, **sitting** (立法會會議), when used to calculate time, means the day on which the sitting commences and only includes a sitting at which subsidiary legislation is included on the order paper. (*Amended 62 of 2000 s. 3*)
- (9) Unless the Secretary appoints a later date either in the memorandum or by notice in the Gazette, a technical memorandum commences to have effect—

- (a) if the Legislative Council does not pass a resolution amending the technical memorandum, upon the expiry of the period, or the period as extended, as the case may be, for passing an amending resolution; and
 - (b) if the Legislative Council passes a resolution amending the technical memorandum, at the beginning of the day of the publication in the Gazette of the resolution.
- (10) If the Secretary issues a technical memorandum under this Ordinance, he must make available a copy of the technical memorandum for inspection by the public free of charge at such offices of the Government as the Secretary directs during business hours.

(Added 54 of 1996 s. 21)

39B. Obstruction of owners' corporation

- (1) A person who has been notified by an owners' corporation of a building that an order or notice has been served on the owners' corporation under any provision of this Ordinance in relation to any common parts of the building must not— *(Amended 16 of 2011 s. 26; 24 of 2012 s. 14)*
 - (a) obstruct a person employed or engaged by the owners' corporation in the carrying out of any inspection, investigation, works or other action that is required for the purpose of complying with the order or notice; or
 - (b) refuse to allow a person employed or engaged by the owners' corporation access to or the use of any premises, which is reasonably necessary for the carrying out of any inspection, investigation, works or other action that is required for the purpose of complying with the order or notice. *(Amended 16 of 2011 s. 26)*
- (1A) A person who has been notified by an owners' corporation of a building that an order or notice has been served on the

owners' corporation under any provision of this Ordinance in relation to any common parts of the building must not refuse to contribute to the cost of the inspection, investigation, works or other action that is required for the purpose of complying with the order or notice. (*Added 16 of 2011 s. 26. Amended 24 of 2012 s. 14*)

- (2) In this section, **owners' corporation** (業主立案法團) means a corporation registered under section 8 of the Building Management Ordinance (Cap. 344). (*Replaced 16 of 2011 s. 26*)

(*Added 15 of 2004 s. 30*)

(*Format changes—E.R. 2 of 2012*)

39C. Building Authority must not serve order under section 24 or notice under section 24C

(*Amended 24 of 2012 s. 7*)

- (1) Despite sections 24 and 24C, the Building Authority must not serve an order under section 24 or a notice under section 24C in respect of a prescribed building or building works on the ground that the building or building works have been completed or carried out in contravention of section 14(1), if—
- (a) the building or building works were completed or carried out before 31 December 2010; and
 - (b) with respect to the building or building works, the requirements in subsections (2), (3) and (4) have been complied with. (*Replaced 24 of 2012 s. 7*)
- (1A) Despite sections 24 and 24C, the Building Authority must not serve an order under section 24 or a notice under section 24C in respect of a prescribed building or building works on the ground that the building or building works have been

completed or carried out in contravention of section 14(1) or not in compliance with the simplified requirements, if—

- (a) the building or building works were completed or carried out before a date prescribed in the Minor Works Regulation in relation to the prescribed building or building works;
 - (b) with respect to the building or building works, the requirements in subsections (2), (3) and (4) have been complied with; and
 - (c) with respect to the building or building works, if periodic compliance with those requirements is required by the Minor Works Regulation, those requirements are complied with in accordance with the Minor Works Regulation. (*Added 24 of 2012 s. 7*)
- (2) An authorized person, a registered structural engineer, a registered inspector, a registered general building contractor, a registered specialist contractor or a registered minor works contractor as required by the Minor Works Regulation is to be appointed to inspect the prescribed building or building works. (*Amended 16 of 2011 s. 27; 24 of 2012 s. 7*)
- (3) The person appointed under subsection (2) is to submit or deliver to the Building Authority or other persons prescribed plans, certificates, notices and other documents as required by the Minor Works Regulation. (*Amended 24 of 2012 s. 7*)
- (4) Where the person appointed under subsection (2) considers that for the safety of the prescribed building or building works, it is necessary to carry out minor works to alter, rectify or reinforce the prescribed building or building works, such works are to be carried out by a prescribed registered contractor under the simplified requirements.
- (5) Nothing in this section affects the power of the Building Authority to serve an order under section 24 or a notice under

section 24C on the grounds other than those referred to in subsection (1) or (1A). (*Amended 24 of 2012 s. 7*)

(6) In this section—

(a) (*Repealed 24 of 2012 s. 7*)

(aa) **Minor Works Regulation** (《小型工程規例》) means the Building (Minor Works) Regulation (Cap. 123 sub. leg. N); (*Added 24 of 2012 s. 7*)

(b) **prescribed building or building works** (訂明建築物或建築工程)—

- (i) in relation to subsection (1), means a building or building works prescribed in the Minor Works Regulation as prescribed building or building works;
- (ii) in relation to subsection (1A), means a building or building works specified in Schedule 8; and
- (iii) in relation to subsection (2) or (4), means a building or building works falling within subparagraph (i) or (ii). (*Replaced 24 of 2012 s. 7*)

(*Added 20 of 2008 s. 27*)